



POLICE DEPARTMENT

October 28, 2024

-----X

In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2022-24895
Police Officer Jamie Truglio	:	
Tax Registry No. 959786	:	
106 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Nicole Jardim, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For Respondent: Michael Martinez, Esq.
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To:
HONORABLE THOMAS G. DONLON
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Jamie Truglio, on or about February 6, 2020, at approximately 2040 hours, while assigned to 044 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused her authority as a member of the New York City Police Department, in that she damaged § 87(2)(b) property by pushing in the entrance door with her shoulder, breaking the chain lock without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by A.G. 304-06)

PUBLIC CONTACT—
PROHIBITED CONDUCT

2. Police Officer Jamie Truglio, on or about February 6, 2020, at approximately 2040 hours, while assigned to 044 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused her authority as a member of the New York City Police Department, in that she entered § 87(2)(b) without sufficient legal authority.

P.G. 203-10, Page 1, Paragraph 5
(now encompassed by A.G. 304-06)

PUBLIC CONTACT—
PROHIBITED CONDUCT

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on September 26, 2024. Respondent, through her counsel, entered a plea of Not Guilty to the charged misconduct. The CCRB presented a hearsay case, entering the audio and written transcript of the CCRB interview of § 87(2)(b)¹, as well as body-worn camera and cellphone video footage into evidence. Respondent testified on her own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Guilty of both specifications and recommend forfeiture of eight (8) vacation days, and that Respondent attend training.

¹ § 87(2)(b) CCRB interview was conducted in Spanish; the Spanish language audio and transcript, as well as an English translation, were provided to the Tribunal.

ANALYSIS

This case arises from a 911 call made on February 6, 2020 regarding a domestic dispute over property. The following is a summary of facts which are undisputed. On the date in question, Respondent and her partner, Police Officer Dylan Mannion, were assigned to patrol in the 44 Precinct. They responded to a 911 call at § 87(2)(b) in the Bronx, which is an apartment building. Once inside Respondent met § 87(2)(b) ("911 Caller"). He told Respondent that his estranged wife, § 87(2)(b) ("Complainant") was refusing to return his car keys and passport, which he alleged were inside of the apartment they used to share.

After speaking with the 911 Caller, Respondent knocked on the door of the residence. After initially refusing, Complainant secured the door with a chain lock before opening it about four inches. While a dispute exists as to whether Respondent leaned on or pushed the door, the parties agree that Respondent made contact with it. The door opened fully and Respondent entered the apartment by standing at the threshold. Complainant repeatedly objected to Respondent entering her apartment and accused her of breaking the chain lock. Respondent remained in the threshold of the apartment, near the open door for approximately three minutes. (CCRB Exhibit 1, body-worn camera footage, at 00:00-03:02; CCRB Exhibit 2, cell-phone recording, Tr. 23-32, 40-43; CCRB Exhibit 4b, Complainant's CCRB interview at 3-6, 9-14)

Complainant, who did not appear before the Tribunal, was interviewed by CCRB two weeks after the incident, on February 21, 2020. She recalled police officers knocking on the door of her apartment. Complainant explained that she did not immediately open the door out of fear. She contended that her mother-in-law had threatened her, and that when she looked out of the peephole, she saw that her estranged husband was in the hall with the officers. (CCRB Ex. 4b at 3) Complainant recounted that she told Respondent that they could speak with the door closed. In

response, Respondent “insisted” that Complainant open the door and that if she did not, Respondent would “knock it down.” Complainant recounted engaging a chain lock before opening the door. (CCRB Ex. 4b at 3-5) She asserted that Respondent broke that lock by “kicking” the door open and then Respondent stepped into the apartment. (CCRB Ex. 4b at 4, 27-28) Complainant maintained that at no point during their encounter did she consent to Respondent entering her residence, and emphasized that she repeatedly told Respondent that she was not allowed in her home. Complainant conceded that, once inside, Respondent remained close to the open door throughout the entire incident, and provided her name and shield number when Complainant requested them. (CCRB Ex. 4b at 6, 23-24)

CCRB entered Respondent’s body-worn camera footage of the incident into evidence.

The following is a summary of Respondent and Complainant’s conversation:

Complainant: “Because I talked to my lawyer. The lawyer said [the police are] not supposed to go in if they don’t have an order from the [judge]². That’s all that my lawyer said.”

Respondent: “Okay, I’ll tell you right now. When you have a police officer that is responding to a 911 call and we’re giving you an order to open your door, your lawyer can’t tell you not to comply with the police.”

Complainant: “Okay.”

Respondent: “That’s illegal.”

Complainant: “He said that’s illegal if you don’t have the [judge]- the [judge]-“

Respondent: “I don’t know what the [judge] is.”

Complainant: “The [judge] order.”

(CCRB Ex. 1 at 00:35-00:57)

² Complainant is a non-native English speaker and pronounced the “u” in “judge” with a long vowel sound. The Tribunal acknowledges that Complainant was saying “judge” throughout this encounter.

Approximately one minute later Complainant and Respondent had the following exchange:

Respondent: "Can you stop- Ma'am! Clear as day, you have me on video standing in your apartment. Can we now move on? Can we move forward with why I'm here?"

Complainant: "Yeah, but now-"

Respondent: "Because you guys-"

Complainant: "You needed permission to go inside. You [broke] the door."

Respondent: "I did push the door."

Complainant: "You [broke] the door."

Respondent: "Because you cracked it open, and you had something in your hand. You were refusing to go forward."

(CCRB Ex. 1 at 02:13-02:28)

In addition, CCRB presented a cell phone video recorded by Complainant's brother, § 87(2)(b) who was present during the encounter. (CCRB Exhibit 2) The video footage depicts the mirror image of the interaction captured on Respondent's body-worn camera, providing the vantage point from inside of the apartment.

00:00-00:44: Respondent and Complainant argue while Respondent has one foot within Complainant's apartment and one foot outside of the apartment.

00:45-00:56: Complainant moves to retrieve a writing instrument and paper.

00:58-01:50: Complainant records Respondent's name and shield number. Complainant hands her writing instrument and paper to Respondent's partner, who writes his name and shield number down and then returns the items to Complainant.

01:51-02:14: Respondent places both feet across the threshold to Complainant's apartment and continues to speak with Complainant.

02:15-02:40: Complainant's brother ushers Complainant further down the hallway. Respondent does not move from her position near the open door.

02:41-02:46: Respondent exits the apartment.

(CCRB Ex. 2)

Respondent took the stand on her own behalf. She recalled responding to a 911 call involving a domestic dispute over property. Respondent testified that when she and her partner arrived at § 87(2)(b) they met with the 911 Caller in the hallway outside of Complainant's apartment. He needed help getting his passport and car keys, which were inside of the apartment. Respondent acknowledged that Complainant indicated, through the closed door, that she did not want to speak to the police. Respondent contended that her efforts to communicate were hindered by a language barrier, and that she called the "language line" in order to get assistance from an interpreter. Respondent recalled that a short time later, Complainant partially opened the door, and that a chain lock was in place. (Tr. 24-26)

Although she denied kicking the door, Respondent did acknowledge that she "leaned" her body against it. She explained that she saw an "object" in Complainant's hand, which made her believe the situation was potentially "dangerous." Respondent testified that she was unsure how the lock was disengaged, but admitted that once the door was fully opened, she stepped inside of the apartment. Respondent asserted that she did not see any damage to the door, and that once inside she remained just over the threshold, near the open door. Respondent remembered trying, unsuccessfully, to explain to Complainant why she was there. Respondent explained her hope was to resolve the issue, by returning the 911 Caller's property, in order to avoid other officers being called there again in the future. After a couple of minutes Respondent determined that Complainant was not "willing" to speak to her, and left the residence. Respondent returned to the hallway, spoke to the 911 Caller, referred him to housing court, and then completed a Domestic Incident Report. (Tr. 28-33)

Respondent stands charged with two specifications, first that she wrongfully damaged the chain lock of the door to Complainant's residence, and second that she subsequently entered the

apartment without legal authority. For the reasons set forth below, I find Respondent guilty of both specifications.

These specifications are comprised of two distinct actions, Respondent breaking the chain lock, and then entering Complainant's home. However, the assessment of each relies on an analysis of whether Respondent's warrantless entry into the apartment was justified. The question for the Tribunal is whether circumstances existed which allowed Respondent to enter Complainant's home lawfully. I find that they did not.

The Supreme Court in *U.S. v. Allen* held that, "at a minimum, law enforcement officers violate *Payton* when, in the absence of exigent circumstances or consent, they physically enter protected premises to effect a warrantless search or arrest." 813 F.3d 76 (2016), citing *U.S. v. Stokes*, 733 F.3d 438, 444 (2d. Cir. 2013).

The parties agree that Respondent stepped inside of Complainant's apartment and remained there after the door was opened. It is undisputed that Respondent possessed neither a warrant, nor consent to enter Complainant's residence. Additionally, Respondent did not claim that she intended to arrest Complainant and there is nothing in the record indicating that there was probable cause that Complainant had committed a crime. The property which Respondent was attempting to retrieve had apparently been left behind by the 911 Caller when he moved out several months before. There was no mention of violence in the radio run.

CCRB presented two video recordings, each offering a different perspective of the events that occurred after Respondent was inside of Complainant's apartment. In addition, Complainant's interview with CCRB investigators was entered into evidence. However, there is no video capturing the moments when the chain lock broke, the door opened, and Respondent stepped inside. Complainant initially told the CCRB investigator that Respondent "broke the

chain.” Later during the interview, she alleged that the lock was damaged when Respondent “kicked” the door open. (CCRB Ex. 4b at 3, 27) Respondent, on the other hand, acknowledged that she saw the chain lock was engaged when Complainant first opened the door, but contended that she did not know how the chain was subsequently removed. Respondent can be heard on the video footage admitting, “I did push the door,” when Complainant accused her of “breaking” it. (CCRB Ex. 1 at 02:21-02:28)

During the encounter, Respondent seemed to be laboring under a fundamental misunderstanding of the law when she said that it was “illegal” for Complainant to refuse to allow a police officer responding to a 911 call into her home. (CCRB Ex. 1 at 00:35-00:57) On the stand, Respondent appeared to still be confused about warrantless entries. During her testimony, Respondent explained that she “wasn’t looking to enter the apartment” when she stepped inside of it, she simply wanted to speak to Complainant “face to face.” (Tr. 31-32)

It is well-settled that hearsay evidence is admissible in administrative proceedings, and may form the sole basis for a finding of fact. The hearsay, however, must be carefully evaluated to determine whether it is sufficiently reliable. It is preferable to have testimony from a live witness, where opposing counsel has the opportunity to cross-examine, and the court can observe the witness's demeanor. In the absence of live testimony from Complainant here, this Tribunal carefully considered her prior recorded statement, and, I credit Complainant’s assertion that Respondent’s making contact with the door caused the lock to break. Indeed, CCRB Exhibit 2, the cell phone footage taken inside of the apartment shows the chain dangling from the slide portion of the lock, instead of hanging from the metal plate on the door frame, indicating it was damaged. (CCRB Ex 2 at 02:43-02:44) This evidence combined with Respondent’s admission to Complainant that she pushed the door prior to its opening supports the conclusion that

Respondent's actions caused damage to the lock. As discussed above, Respondent did not possess a warrant or consent, and there were no exigent circumstances present. Under the circumstances, Respondent was obligated to abide by Complainant's wish to keep her door partially closed. Indeed, Complainant was not required to open the door at all. Respondent's pushing or leaning on it, causing the lock to break, over Complainant's expressed objection, was therefore improper.

Once the lock was broken, Respondent crossed the threshold of Complainant's home and remained there for approximately two minutes. During the interaction with Complainant, and again at trial, Respondent made a vague reference to her safety being compromised by Complainant's partial opening of the door with an unidentified object in her hand. The Tribunal acknowledges the inherent dangers involved when responding to a domestic dispute. However, I am not satisfied that the evidence presented in this matter indicated any circumstances which would justify Respondent's warrantless entry into the apartment. General safety concerns are intrinsic to every police interaction, and without more, do not rise to the level of exigency permitting warrantless entry into a private residence. Fourth Amendment privacy protections of the home are a core constitutional right, unless the exigencies of the situation make the needs of law enforcement so compelling that the intrusion is objectively reasonable. In this case, Respondent did not possess any additional information which would cause a reasonable officer to fear for their safety and there was no evidence in the record that exigent circumstances were present. For the foregoing reasons, I find Respondent Guilty of Specifications One and Two.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances,

including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from her personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent was appointed to the Department on October 7, 2015, and has one prior formal disciplinary matter from 2019 where she pled guilty to failing to safeguard a prisoner who then escaped. Here, she has been found guilty of wrongfully damaging Complainant's property and entering her apartment without legal authority. The CCRB has recommended the presumptive penalty for wrongful property damage, forfeiture of ten (10) vacation days for Specification 1, to run concurrently with the presumptive penalty for Specification 2 of ten (10) days for unlawful entry. As discussed below, I believe a forfeiture of eight (8) vacation days is a more appropriate penalty.

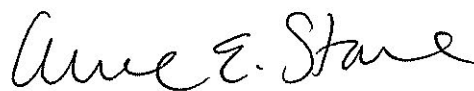
I believe Respondent's testimony that she was hoping to act as an intermediary between the parties in order to resolve the issues surrounding the property as expeditiously as possible. Indeed, the ideal scenario would have been Respondent knocking on the door, explaining the situation, Complainant handing Respondent the items, and Respondent in turn giving them to the 911 Caller. The Tribunal recognizes that the Department encourages officers to be problem solvers. However, that laudable sentiment does not trump the laws in place which protect citizens from unreasonable intrusions into their homes. The evidence shows that Respondent, based on a mistaken understanding of the law, was determined to have the apartment door open while she spoke to Complainant despite Complainant's clear objection to her presence at the door. Once Complainant partially opened the door, Respondent improperly leaned or pushed on the door,

causing the chain lock to break. Rather than staying outside, she stepped over the threshold into Complainant's residence without a lawful basis to do so.

CCRB is seeking the presumptive penalty of ten (10) days for an unlawful entry with substantial physical presence or remaining on the premises without sufficient evidence. Once Respondent was in the home, the encounter was relatively brief. Respondent remained close to the open door and did not conduct a search. She provided her name and shield number to Complainant upon request. My assessment is that the evidence supports the less intrusive, de minimus, "foot over the threshold" category of entry contemplated by the Matrix. The presumptive penalty for which is three (3) vacation days. With regard to the broken chain, I believe that the mitigated penalty of five (5) vacation days is appropriate. Although there is evidence that Respondent's actions caused the chain to break, the CCRB has not proven by a preponderance of the evidence that Respondent intended to do so. I believe that the penalties should run consecutively.

On balance, a penalty which makes clear that officers must not violate the core Fourth Amendment protections for private residences, except where there is a recognized legal exception, while at the same time acknowledging Respondent's lack of intent to cause harm is appropriate. I believe the forfeiture of eight (8) vacation days is appropriate. In addition, it is my opinion that Respondent would benefit from training regarding the law surrounding warrantless entries into private homes.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

NOV 13 2024



THOMAS G. DONLON
POLICE COMMISSIONER



ERIC L. ADAMS
MAYOR

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October 28, 2024

Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: Police Officer Jamie Truglio
DADS #: 2022-24895

Dear Interim Commissioner Donlon:

The above-referenced case was tried on September 26, 2024, by Administrative Prosecutor Nicole Jardim for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between the CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Anne E. Stone, dated October 16, 2024. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

Respondent, Police Officer Jamie Truglio, was charged with the following:

1. Police Officer Jamie Truglio. on or about February 6, 2020, at approximately 2040. while assigned to 044 PCT and on duty. in the vicinity of § 87(2)(b) [REDACTED] Bronx County, abused her authority as a member of the New York City Police Department, in that she damaged § 87(2)(b) [REDACTED] property, to wit. she pushed in the entrance door with her shoulder, breaking the door chain lock, without sufficient legal authority.

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT- PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-00, page 1 paragraph 1 PROHIBITED CONDUCT]

2. Police Officer Jamie Truglio, on or about February 6, 2020, at approximately 2040, while assigned to 044 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused her authority as a member of the New York City Police Department, in that she entered § 87(2)(b) without sufficient legal authority.

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT- PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06, page 1 paragraph PROHIBITED CONDUCT]

The Court found Respondent Truglio Guilty of both Specifications One (1) and Two (2). It is respectfully requested that you accept ADCT Stone's findings as to both Specifications One (1) and Two (2). Further, CCRB requests that you accept CCRB's recommended penalties as directed by the NYPD Disciplinary Matrix for each Specification. For Specification One (1), the presumptive penalty of a forfeiture of ten (10) vacation days and the presumptive penalty of a forfeiture of ten (10) vacation days for Specification Two (2) to run concurrently to Specification One (1).

STATEMENTS OF FACTS

On February 6, 2020, at approximately 8:40 p.m., Police Officers Jamie Truglio and Dylan Mannion of the 44th Precinct visited § 87(2)(b) apartment at § 87(2)(b) in the Bronx, in response to a 911 call from § 87(2)(b) ex-husband, § 87(2)(b) § 87(2)(b) alleged that § 87(2)(b) would not return his personal belongings to him which were in the apartment they previously shared. After the officers arrived at the location, § 87(2)(b) refused to open her apartment door further than the secured chain lock. Police Officer ("PO") Truglio proceeded to lean her body up against the door to push it open, breaking the chain, and entered § 87(2)(b) apartment. PO Truglio crossed the threshold of the apartment door and had both feet inside of § 87(2)(b) apartment. § 87(2)(b) repeatedly asked PO Truglio if she had a judge's order and that she did not have permission to be inside her apartment. After speaking to § 87(2)(b) inside her apartment, PO Truglio exited and completed a Domestic Incident Report with § 87(2)(b) and PO Mannion in the hallway outside § 87(2)(b) apartment, then left the incident location.

RESPONDENT TRUGLIO IS GUILTY OF DAMAGING § 87(2)(b) PROPERTY IN THAT SHE BROKE THE DOOR'S CHAIN LOCK

PO Truglio was found guilty of damaging § 87(2)(b) property in that she broke the door's chain lock. The CCRB agrees with this recommendation and the Court's conclusion that "respondent's pushing or leaning on [the door], causing the lock to break, over Complainant's objections, was therefore improper" (Draft Decision 9). It is undisputed, based on the evidence and testimony presented at the trial, that PO Truglio lacked consent or a warrant to enter § 87(2)(b) apartment. In addition, the evidence presented at trial also clearly shows that PO Truglio broke the chain lock off the door when she leaned her body up against the door. While the complainant, § 87(2)(b) did not testify at trial, her CCRB statement was entered into evidence as CCRB Exhibits 4, 4a and 4b. While there is no video of the initial entry into the home and the chain lock breaking, § 87(2)(b) stated in her CCRB interview that she had engaged the chain lock on the door prior to

opening it to speak to PO Truglio and that PO Truglio broke the lock on her door (CCRB Ex. 4b at 3, 27). In addition, during her testimony, PO Truglio admitted that she did see that there was a chain lock in place. (Tr. 24-26). She also testified that she “leaned her body” up against the door when speaking to § 87(2)(b) and that the door was fully opened after this (Tr. 23-28). In video evidence submitted by the CCRB of the interaction between PO Truglio and § 87(2)(b) PO Truglio can be heard admitting, “I did push the door,” when § 87(2)(b) accused her of “breaking” it. (CCRB Ex. 1 at 02:21-02:28). Both § 87(2)(b) statement and PO Truglio’s statements therefore make clear that the chain lock was in place and intact prior to PO Truglio’s action of leaning her body up against the door. Lastly, the objective, credible evidence entered at trial by the CCRB supports the conclusion that the chain lock was broken after PO Truglio leaned her body up against the door. As the Court noted in its decision, CCRB Exhibit 2 at 2:43-2:44, the cell phone footage taken inside of the apartment shows the chain dangling from the slide portion of the lock, instead of hanging from the metal plate on the door frame, indicating it was damaged. (Draft Decision 9, 10).

The video evidence entered at trial combined with both § 87(2)(b) statement and PO Truglio’s admission support the conclusion that PO Truglio broke § 87(2)(b) chain lock when she leaned her body up against the door and thus ADCT Stone’s finding is appropriate. The CCRB respectfully requests that you adopt ADCT Stone’s findings and impose the presumptive penalty of a forfeiture of ten (10) vacation days as directed under the NYPD Disciplinary System Penalty Guidelines.

RESPONDENT TRUGLIO IS GUILTY OF UNLAWFULLY ENTERING § 87(2)(b)
APARTMENT

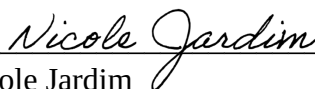
PO Truglio was found guilty of unlawfully entering § 87(2)(b) apartment. The CCRB agrees with this recommendation and the Court’s conclusion that “respondent did not possess any additional information which would cause a reasonable officer to fear for their safety and there was no evidence in the record that exigent circumstances were present.” (Draft Decision 9). It is undisputed, based on the evidence and testimony presented at the trial, that PO Truglio lacked consent or a warrant to enter § 87(2)(b) apartment and that she still entered the apartment anyway. Video evidence entered at trial by the CCRB as CCRB Exhibits 1 and 2 clearly capture § 87(2)(b) asking PO Truglio if she had a “judge’s order” to enter the apartment and repeatedly telling PO Truglio that she did not have permission to be inside her home. PO Truglio can be seen in these videos standing inside the apartment with both her feet over the threshold and her body inside the apartment. PO Truglio can also be heard stating that she is “clear as day” standing inside of § 87(2)(b) apartment. (CCRB Ex 1 at 00:35-00:57 and 2:13-2:28); (CCRB Ex 2 at 0:44-2:46). During her testimony, PO Truglio admitted that she did not have a warrant to enter the home and that she did in fact enter the apartment. Absent a warrant or consent from § 87(2)(b) PO Truglio could have only lawfully entered the apartment if there was an emergency or exigent circumstances present. The Court noted in its decision that neither of these exceptions for a warrantless entry were present during this incident (Draft Decision 9). During her testimony, PO Truglio did not claim that she intended to arrest § 87(2)(b) and did not state that she had any probable cause, at the time she entered the apartment, to believe that § 87(2)(b) had committed a crime. (Tr 47-48). In addition, the 911 call and radio run that the officers received indicated that this was a family dispute regarding property and did not indicate any violence. (Tr. 35) (CCRB Exhibit 3). In fact, the radio message in evidence, clearly states that there were no injuries and no weapons. (CCRB Exhibit 3b). All of this evidence combined makes clear that there was no emergency at hand nor were there any exigent circumstances present that would justify PO Truglio’s unlawful entry into the apartment.

The video evidence entered at trial combined with both § 87(2)(b) and PO Truglio's statements support the conclusion that PO Truglio unlawfully entered § 87(2)(b) apartment and thus ADCT Stone's finding is appropriate. The CCRB respectfully requests that you adopt ADCT Stone's findings and impose the presumptive penalty of a forfeiture of ten (10) vacation days as directed under the NYPD Disciplinary System Penalty Guidelines.

CONCLUSION

The Court found Respondent Truglio Guilty of both Specifications One (1) and Two (2). It is respectfully requested that you accept ADCT Stone's findings as to both Specifications. Further, CCRB requests that you accept CCRB's recommended penalties as directed by the NYPD Disciplinary System Penalty Guidelines for each Specification. For Specification One (1), the presumptive penalty of a forfeiture of ten (10) vacation days and the presumptive penalty of a forfeiture of ten (10) vacation days for Specification Two (2) to run concurrently to Specification One (1).

Respectfully submitted,



Nicole Jardim
Prosecutor
Administrative Prosecution Unit
Civilian Complaint Review Board

Cc: Michael Martinez, Esq